

Ramveer Singh v. U.P. Power Corporation Ltd. & Another

Allahabad High Court · Single Judge · 2 July 2014 · 2014 SCC OnLine All 9211 · Writ - C No. 13988 of 2009 · **Writ petition allowed in part; assessment and appellate orders set aside; matter remanded**

HEADNOTE

An unauthorised-use assessment under Section 126 of the Electricity Act, 2003 must be made at the rate fixed by the U.P. Electricity Supply Code, 2005. Clause 2 of Annexure 6.3 of the Code requires the assessed consumption to be charged at one-and-a-half times the tariff rate per unit applicable to the consumer category; where the assessing officer instead assessed at thrice the tariff rate, the assessment is erroneous to that extent and illegal. The assessment order and the (wholly unreasoned) appellate order were set aside and the matter remanded for a fresh assessment in accordance with law and at the correct 1.5-times rate.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.3

UUE assessment must be at 1.5 times the tariff, not thrice

QUESTION

At what rate must a s.126 unauthorised-use assessment be charged under the Code?

HOLDING

At one-and-a-half times the tariff rate per unit applicable to the consumer category, per Clause 2 of Annexure 6.3 (this amount not being counted for computing minimum monthly/annual charges). An assessment made at thrice the tariff rate is erroneous and illegal to that extent; the assessment and the unreasoned appellate order are set aside and the matter remanded for a fresh order at the correct rate. ¶ 5-7

LIMITING FACTS

Theft assessment under s.126(1) of Rs. 1,81,572 made at thrice the tariff; appeal rejected by a wholly unreasoned order.

PRINCIPLE TAGS

uue-assessment-at-1.5x-tariff-not-thrice Under Annexure 6.3 (Clause 2) of the Code, a s.126 unauthorised-use assessment is charged at 1.5 times the applicable tariff; assessing at a higher multiple (thrice) is illegal. ¶ 5-7